



Appeal Decision

Site visit made on 17 July 2026

by K Winnard LL.B Hons Solicitor

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref: 6010859

Giles House Farm, Bromsgrove Road, Stourbridge Worcestershire DY9 9TY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by I Watson against the decision of Bromsgrove District Council.
 - The application Ref is 25/01389/FUL.
 - The development proposed is the enlargement of an existing approved garage (under 22/01089/FUL).
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Decision

1. The appeal is allowed and planning permission is granted for the enlargement of an existing approved garage at Giles House Farm, Bromsgrove Road, Stourbridge DY9 9TY in accordance with the terms of the application, 25/01389/FUL, and the plans submitted with it subject to the following conditions:
 - (i) The development hereby permitted shall begin not later than 3 years from the date of this decision.
 - (ii) The development hereby permitted shall be carried out in accordance with the following approved plans: Site Location Plan, Proposed Site Plan Drawing No. 127-SL211 Revision A and Proposed Garage Plan 127-PR210 Revision A.
 - (iii) No development above ground level shall take place until samples of the materials to be used in the construction of the external surfaces of the garage now permitted have been submitted to and approved in writing by the local planning authority. The development shall be carried out in accordance with the approved samples.

Procedural Matter

2. The description of development on the application form includes reference to a garden store which is omitted on the revised plans submitted during the course of the application process. Therefore, in the banner heading above I have adopted the description of the development used in the decision notice as it more accurately reflects the proposed development.

Main Issues

3. The main issues in the appeal are as follows:

- Whether the proposal would be inappropriate development in the Green Belt having regard to the National Planning Policy Framework (the Framework) and any relevant development plan policies;
- If so, the effect of the proposal on the openness of the Green Belt; and
- Whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations to amount to the ‘very special circumstances’ necessary to justify the proposal.

Reasons

Inappropriate Development

4. The appeal site lies within the Green Belt. The Framework states that the construction of new buildings is inappropriate development within the Green Belt unless the development falls within specified exceptions. The list of exceptions does not include the construction of domestic outbuildings, including garages, which in themselves would normally be inappropriate development. Policy BPD4 of the Bromsgrove District Plan (LP) broadly follows the Framework in establishing that the construction of new buildings in the Green Belt is generally considered to be inappropriate development.
5. The appellant does not challenge the assessment made by the Council that the proposal would amount to inappropriate development in the Green Belt. I accordingly conclude that the proposal would not fall within any of the exceptions provided for within the Framework. As such, it would constitute inappropriate development within the Green Belt, which is by definition harmful to the Green Belt. It would also fail to comply with LP Policy BDP4.

Openness

6. The essential characteristics of the Green Belt are their openness and spatial permanence. The openness of the Green Belt has a spatial and visual aspect and is primarily characterised by a lack of buildings or development. No building currently exists in the place of the proposed development and so there would be built form where currently there is none. Therefore, the proposal would decrease the spatial aspect of the site’s openness through the introduction of built form on the site.
7. Giles House Farm is located well away from the public highway, and the proposed garage would be located within its curtilage bounded by substantive boundary treatment. Its location therefore would limit any visual intrusion into the openness of the surrounding countryside. Overall, whilst there would be very limited harm to visual openness, there would be modest harm to the spatial dimension of the openness of the Green Belt.

Other Considerations

8. Planning permission for extensions and a detached garage to Giles House Farm was granted in 2020 (2020 permission). There is no dispute on the information before me that this permission is extant. There is therefore a valid fallback position. For a fallback position to be a material planning consideration there must be a real prospect of it being implemented and there to be more than a merely theoretical possibility.

9. Given that the appeal site already benefits from an extant permission for a detached garage, there is a clear intention to build a garage on the site to park vehicles. As such, even though the previously approved garage would have a lower ridge height and would be slightly smaller than the proposed garage, there is a greater than theoretical possibility that the fallback garage would be built. For significant weight to be afforded to a fallback position it would also need to be equally or more harmful than the appeal scheme.
10. Whilst the proposal would have a higher ridge height and steeper pitch, its design would be more in keeping with the original farmhouse and outbuildings. In this regard the proposed garage would be more reflective of a rural setting and as such would read as a visual improvement compared to the garage previously approved. Within this context, and although the proposal would be slightly larger than the extant permission, the harm to the openness of the Green Belt would be negligible. In combination with its improved design, the proposal would be no more harmful than the fallback position. This is a matter which carries considerable weight in favour of the appeal scheme.
11. At present the wider appeal site is used for car parking which in itself has a detrimental spatial and visual impact on the Green Belt. The garage proposed would be of a scale and size which would comply with the Worcestershire County Council's design guide (design guide) relating to minimum garage sizes within new residential development and intended to accommodate 3 standard modern vehicles. Although this standard is primarily aimed at new development this guidance is nevertheless material to my assessment as it is an indication of what size a useable garage should be. Given the measurements provided for within the design guide, the garage previously approved would only be practical to use for two modern cars, such that car parking would be likely to still occur on the wider appeal site.
12. The proposal would therefore enable car parking to take place off open land. It would result in a marked visual improvement to the car parking provision envisaged under the 2020 permission. Whilst there may be an increase in the size and built development than that previously approved, the provision of a more satisfactory car parking solution in visual terms is a factor which carries significant weight in favour of the appeal.

Green Belt Balance

13. The proposal would constitute inappropriate development within the Green Belt and would also cause limited harm to the openness of the Green Belt. I attach substantial weight to the harm to Green Belt and harm to openness.
14. The Framework indicates that inappropriate development within the Green Belt is, by definition, harmful to the Green Belt and should not be approved except in 'very special circumstances'. 'Very special circumstances' will not exist unless the potential harm to the Green Belt is clearly outweighed by other considerations. I have taken into account the two schemes and their likely effects. I have attached substantial weight to the other considerations of the appeal scheme identified above. Such considerations would clearly outweigh the harm identified to the Green Belt so as to amount to the 'very special circumstances' necessary to justify the proposal.

Conditions

15. Conditions in respect of timescales and specifying the approved plans are necessary as these provide certainty. A condition regarding the materials to be used is also necessary to ensure that the appearance of the development is satisfactory.

Conclusion

16. For the reasons given above having considered the development plan and all other material considerations, I conclude that the appeal should be allowed.

K Winnard

INSPECTOR